

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

CATHERINE WARREN,

Plaintiff(s),

-against-

THE CITY OF NEW YORK and "JOHN DOES 1-3,"
names being fictitious and presently unknown, intended
to be the police officers involved in plaintiff's arrest,
detention and imprisonment on November 27, 2013,

Defendant(s).

Index No.:

Date Purchased:

Plaintiff designates Kings
County as the place for trial.

The basis of the venue is
plaintiff's residence.

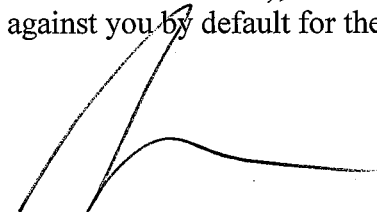
SUMMONS

Plaintiff resides at
2018 Voorhies Avenue, Apt. A1
Brooklyn, New York 11235

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this
action and to serve a copy of your answer or, if the complaint is not served with this summons, to
serve a notice of appearance, on the Plaintiff(s) Attorney within 20 days after the service of this
summons, exclusive of the day of service (or within 30 days after the service is complete if this
summons is not personally delivered to you within the State of New York); and in case of your
failure to appear or answer, a judgment will be taken against you by default for the relief demanded
in the complaint.

Dated: New York, New York
April 22, 2014



Bryan J. Swerling, Esq.
LAW OFFICE OF BRYAN J. SWERLING
Attorney for Plaintiff
Office & Post Office Address
150 Broadway, Suite 1600
New York, New York 10038
(212) 571-5757

Defendant(s)' Addresses:

THE CITY OF NEW YORK: 100 Church Street, New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

CATHERINE WARREN,

Plaintiff,

-against-

THE CITY OF NEW YORK and "JOHN DOES 1-3,"
names being fictitious and presently unknown, intended to
be the police officers involved in plaintiff's arrest,
detention and imprisonment on November 27, 2013,

Defendants.

Index No.

VERIFIED COMPLAINT

CATHERINE WARREN ("Plaintiff"), by her attorneys, THE LAW OFFICE OF BRYAN J. SWERLING, P.C., complaining of the defendants herein, respectfully shows to this Court, and alleges as follows, upon information and belief, that on November 27, 2013, at 2018 Voorhies Avenue, in the County of Kings, City and State of New York (unless otherwise specified):

THE PARTIES

1. That at all times hereinafter mentioned, defendant, THE CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

2. That heretofore and on or about the 30th day of January 2010, plaintiff's Notice of Claim was duly served upon and filed with the defendant THE CITY OF NEW YORK (hereinafter referred to as the "CITY").

3. That at least thirty (30) days have elapsed since the demand or claim upon which this action is predicated was presented to the defendants for adjustment and they have neglected and/or refused to make adjustments or payment thereof. That this action is not commenced more than one year and ninety (90) days after the cause of action accrued.

4. That at all times hereinafter mentioned, defendant CITY operated, controlled and maintained a police force known as the New York City Police Department (hereinafter referred to as "NYPD").

5. That at all times hereinafter mentioned, the NYPD was a subdivision, department or agency of defendant CITY.

6. That at all times hereinafter mentioned, defendant, JOHN DOE 1 (hereinafter referred to as "DOE 1") was a police officer employed by co-defendant CITY and more specifically the NYPD.

7. That at all times hereinafter mentioned, defendant DOE 1 was acting within the scope and course of his/her employment with the NYPD, and under color of state law.

8. That at all times hereinafter mentioned, defendant DOE 1 was involved in the arrest, detention, and imprisonment of plaintiff on November 27, 2013.

9. That at all times hereinafter mentioned, defendant, JOHN DOE 2 (hereinafter referred to as "DOE 2") was a police officer employed by co-defendant CITY and more specifically the NYPD.

10. That at all times hereinafter mentioned, defendant DOE 2 was acting within the scope and course of his/her employment with the NYPD, and under color of state law.

11. That at all times hereinafter mentioned, defendant DOE 2 was involved in the arrest, detention, and imprisonment of plaintiff on November 27, 2013.

12. That at all times hereinafter mentioned, defendant, JOHN DOE 3 (hereinafter referred to as "DOE 3") was a police officer employed by co-defendant CITY and more specifically the NYPD.

13. That at all times hereinafter mentioned, defendant DOE 3 was acting within the scope and course of his/her employment with the NYPD, and under color of state law.

14. That at all times hereinafter mentioned, defendant DOE 3 was involved in the arrest, detention, and imprisonment of plaintiff on November 27, 2013.

15. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules §1602 with respect to joint and several liability.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Arrest/Imprisonment)

16. Plaintiff CATHERINE WARREN repeats and re-alleges each and every allegation set forth above as though fully set forth at length herein.

17. That on or about November 27, 2013, at approximately 9:00 p.m inside the lobby of 2018 Voorhies Avenue in the County of Kings, City and State of New York, DOES 1-3 approached plaintiff, who was lawfully located and properly present in a public portion of said lobby, and who was not engaged in any unlawful conduct and who had not committed any unlawful acts, and, for no justifiable reason, defendants DOES 1-3 arrested plaintiff.

18. DOES 1-3, employees of defendant CITY, while acting in concert and within the scope of their employment, and without a warrant, seized plaintiff, forcibly put plaintiff into handcuffs, placed plaintiff under arrest without any reasonable cause to believe that plaintiff had committed, was committing, or was about to commit any offense, and caused plaintiff to be imprisoned and incarcerated at various facilities owned, operated, maintained, and controlled by defendant CITY, and thereby deprived plaintiff of her rights, liberties, and freedoms under color of state law.

19. Plaintiff was thereafter illegally kept in police custody for more than eighteen (18) hours, during which time she was illegally searched without a warrant and without any reasonable suspicion or probable cause that plaintiff was committing, had committed or was about to commit any offense..

20. Plaintiff was illegally handcuffed, fingerprinted, photographed, searched, and criminally processed even though she had not committed any offense and the police officers had no lawful basis to have stopped, detained, or arrested plaintiff in the first place.

21. That plaintiff's illegal arrest, detention, searches, and imprisonment was/were caused by the CITY, its agents, servants and/or employees, including defendants DOES 1-3, without a warrant and without any reasonable cause or belief that plaintiff had committed or was in fact guilty of any offense.

22. That defendant CITY, its agents, servants and/or employees, as set forth above, intended to confine plaintiff; that plaintiff was conscious of the confinement; that plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

23. That by virtue of the aforementioned acts, defendants are liable to plaintiff for false arrest and false imprisonment.

24. That defendant CITY is liable for the damages suffered by plaintiff as a result of the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

25. That as a result of the foregoing, plaintiff was severely and seriously mentally injured, suffered a loss of liberty and a loss of enjoyment of life, suffered great indignity and humiliation, was held up to scorn and ridicule, was injured in her character and reputation, and suffered economic loss and other damages.

26. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

SECOND CAUSE OF ACTION AGAINST DEFENDANTS DOES 1-3
(42 U.S.C. § 1983 based on False Arrest/Imprisonment)

27. Plaintiff CATHERINE WARREN repeats and re-alleges each and every allegation set forth above as though fully set forth at length herein.

28. That by virtue of the aforementioned unlawful arrest and imprisonment, plaintiff was deprived of her rights, privileges and immunities secured by the Constitution of the United States,

including her rights under the Fourth and Fourteenth Amendments to the U.S. Constitution to be free from unreasonable or unlawful searches and seizures.

29. That defendants DOES 1-3 are sued in their individual and official capacities.

30. That as a result of the foregoing, plaintiff was severely and seriously mentally injured, suffered a loss of enjoyment of life and loss of liberty, suffered great indignity and humiliation, was held up to scorn and ridicule, was injured in her character and reputation, and suffered economic loss and other damages.

31. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Excessive Force)

32. Plaintiff CATHERINE WARREN repeats and re-alleges each and every allegation contained above as though set forth at length herein.

33. The above-described actions of defendants DOES 1-3 were excessive, unwarranted, unnecessary and violent and violated plaintiff's rights under the New York State and federal Constitutions.

34. The above-described actions of defendants DOES 1-3 was unnecessary and unwarranted in the performance of their duties as police officers of the City of New York, and constituted an unreasonable and excessive use of force.

35. Defendant CITY is liable for the damages suffered by plaintiff as a result of the conduct of its agents, servants and/or employees, under the doctrine of respondeat superior.

36. That as a result of the foregoing, plaintiff was severely and seriously mentally injured, suffered a loss of enjoyment of life and loss of liberty, suffered great indignity and humiliation, was held up to scorn and ridicule, was injured in her character and reputation, and suffered economic loss and other damages.

37. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

FOURTH CAUSE OF ACTION AGAINST DEFENDANTS
FASL, ANDERSON, AND DOES 1-3
(42 USC §1983 Arising from Excessive Force)

38. Plaintiff CATHERINE WARREN repeats and re-alleges each and every allegation set forth above as though fully set forth at length herein.

39. That defendants DOES 1-3 are sued in their individual and official capacities.

40. Defendants' aforesaid violent, unnecessary, unwarranted, and unlawful conduct, deprived plaintiff of her rights, privileges and immunities secured by the Constitution of the United States of America, inter alia, plaintiff's Fourth and Fourteenth Amendment rights.

41. That as a result of the foregoing, plaintiff was severely and seriously mentally injured, suffered a loss of enjoyment of life, loss of liberty, suffered great indignity and humiliation, was held up to scorn and ridicule, was injured in her character and reputation, and suffered economic loss and other damages.

42. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

FIFTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution)

43. Plaintiff CATHERINE WARREN repeats and re-alleges each and every allegation set forth above as though fully set forth at length herein.

44. Despite the fact that plaintiff had committed no offense and the defendants lacked probable cause to arrest and commence/continue a prosecution against her, defendants DOES 1-3 initiated a prosecution against plaintiff. By virtue of all of the aforementioned acts, defendants, who were acting in concert and within the scope of their employment, are liable to plaintiff for malicious prosecution.

45. That defendant CITY is liable for the damages suffered by plaintiff as a result of the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

46. That as a result of the foregoing, plaintiff was severely and seriously mentally injured, suffered a loss of liberty and a loss of enjoyment of life, suffered great indignity and humiliation, was held up to scorn and ridicule, was injured in her character and reputation, and suffered economic loss and other damages.

47. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

SIXTH CAUSE OF ACTION AGAINST DEFENDANTS DOES 1-3
(42 U.S.C. § 1983 based on Malicious Prosecution)

48. Plaintiff CATHERINE WARREN repeats and re-alleges each and every allegation set forth above as though fully set forth at length herein.

49. That by virtue of the aforementioned acts by defendants DOES 1-3, plaintiff was deprived of her civil rights guaranteed under the Constitution of the United States, including her right under the Fourth and Fourteenth Amendment to the U.S. Constitution to be free from unreasonable or unlawful searches and seizures, and defendants DOES 1-3 are therefore liable to plaintiff for damages under 42 USC § 1983.

50. Defendants FASL, ANDERSON, and DOES 1-5 are sued in their individual and official capacities.

51. That as a result of the foregoing, plaintiff was severely and seriously mentally injured, suffered a loss of liberty and a loss of enjoyment of life, suffered great indignity and humiliation, was held up to scorn and ridicule, was injured in her character and reputation, and suffered economic loss and other damages.

52. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Assault)

53. Plaintiff CATHERINE WARREN repeats and re-alleges each and every allegation set forth above as though fully set forth at length herein.

54. Upon approaching plaintiff and while in the process of illegally searching and handcuffing her, defendants DOES 1-3, employees of defendant CITY, while acting in concert and within the scope of their employment, made plaintiff fear for her physical well-being and safety and placed her in apprehension of immediate harmful and/or offensive touching.

55. Said actions by defendants DOES 1-3 constituted a willful, unlawful, unwarranted, and intentional assault upon plaintiff.

56. Defendant CITY is liable for the damages suffered by the plaintiff as a result of the conduct of its agents, servants and/or employees, under the doctrine of respondeat superior.

57. That as a result of the foregoing, plaintiff was severely and seriously mentally injured, suffered a loss of enjoyment of life and a loss of liberty, suffered great indignity and humiliation, was held up to scorn and ridicule, was injured in her character and reputation, and suffered economic loss and other damages.

58. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Battery)

59. Plaintiff CATHERINE WARREN repeats and re-alleges each and every allegation set forth above as though fully set forth at length herein.

60. Defendants DOES 1-3, employees of defendant CITY, while acting in concert, assaulted, battered, intimidated, threatened, menaced, and struck plaintiff.

61. That the aforesaid conduct by defendants DOES 1-3, was without the consent of plaintiff.

62. That the aforesaid conduct by defendants DOES 1-3, was offensive in nature.
63. That the aforesaid conduct by defendants DOES 1-3, was intentional.
64. That the aforesaid conduct by defendants DOES 1-3, was with the intent of causing physical, emotional and/or psychological harm and/or other injuries to plaintiff.
65. Said actions were excessive, unwarranted, unnecessary and violent and violated plaintiff's rights under the Constitution.
66. Defendant CITY is liable for the damages suffered by the plaintiff as a result of the conduct of its agents, servants and/or employees, under the doctrine of respondeat superior.
67. That as a result of the foregoing, plaintiff was severely and seriously mentally injured, suffered a loss of enjoyment of life and loss of liberty, suffered great indignity and humiliation, was held up to scorn and ridicule, was injured in her character and reputation, and suffered economic loss and other damages.
68. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

NINTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Intentional Infliction of Emotional Distress)

69. Plaintiff CATHERINE WARREN repeats and re-alleges each and every allegation set forth above as though fully set forth at length herein.
70. Defendants' conduct, in assaulting and battering plaintiff was extreme, outrageous, shocking and exceeded all reasonable bounds of decency.
71. Defendant CITY is liable for the damages suffered by plaintiff as a result of the conduct of its agents, servants and/or employees, under the doctrine of respondeat superior.
72. Defendants' extreme and outrageous conduct was intended to cause and did cause severe emotional distress to plaintiff.

73. That as a result of the foregoing, plaintiff was severely and seriously mentally injured, suffered a loss of enjoyment of life and loss of liberty, suffered great indignity and humiliation, was held up to scorn and ridicule, was injured in her character and reputation, and suffered economic loss and other damages.

74. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

TENTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Negligent Infliction of Emotional Distress)

75. Plaintiff CATHERINE WARREN repeats and re-alleges each and every allegation set forth above as though fully set forth at length herein.

76. Defendants' conduct, in assaulting and battering plaintiff was careless and negligent as to the emotional health of plaintiff.

77. Defendant CITY is liable for the damages suffered by the plaintiff as a result of the conduct of its agents, servants and/or employees, under the doctrine of respondeat superior.

78. That as a result of the foregoing, plaintiff was severely and seriously mentally injured, suffered a loss of enjoyment of life and loss of liberty, suffered great indignity and humiliation, was held up to scorn and ridicule, was injured in her character and reputation, and suffered economic loss and other damages.

79. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

ELEVENTH CAUSE OF ACTION AGAINST DEFENDANT CITY
(Negligent Training, Supervision, and Retention)

80. Plaintiff CATHERINE WARREN repeats and re-alleges each and every allegation set forth above as though fully set forth at length herein.

81. That the aforesaid violent assault and excessive force perpetrated on plaintiff by defendants DOES 1-3 were the result of the negligence/gross negligence of the City in its hiring, supervision, training, monitoring, auditing, disciplining, and retention of said defendant police officers.

82. That due to the negligent hiring, supervision, training, monitoring, auditing, disciplining, and retention by the CITY of defendants DOES 1-3, plaintiff was severely and seriously mentally injured, suffered a loss of enjoyment of life and loss of liberty, suffered great indignity and humiliation, was held up to scorn and ridicule, was injured in her character and reputation, and suffered economic loss and other damages.

83. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

TWELFTH CAUSE OF ACTION AGAINST DEFENDANT CITY
(Violation of Civil Rights Afforded by 42 USC §1983 - "Monell" Claim
Regarding Failure to Train/Supervise)

84. Plaintiff CATHERINE WARREN repeats and re-alleges each and every allegation set forth above as though fully set forth at length herein.

85. The abuse to which plaintiff was subjected was consistent with an institutionalized practice of the NYPD, which was known to and ratified by the defendant CITY.

86. Despite knowledge of these institutionalized practices, the defendant CITY has at no time taken any effective action to prevent NYPD personnel from continuing to engage in this type of misconduct.

87. Defendant CITY had prior notice of the vicious propensities of defendants DOES 1-3, but took no steps to train them, correct their abuse of authority, or to discourage their unlawful use of authority.

88. The failure of defendant CITY to properly train defendants DOES 1-3 included the failure to instruct them in applicable provisions of the State Penal Law of the State of New York, federal and state constitutional limitations, and the proper and prudent use of force.

89. Defendant CITY authorized, tolerated as institutionalized practices, and ratified the misconduct detailed above by, among other things:

- a. Failing to properly discipline, train, restrict, and control employees, including defendants DOES 1-3, known to be irresponsible in their dealings with citizens of the community;
- b. Failing to take adequate precautions in the training, hiring, promotion, and retention of police personnel, including specifically defendants DOES 1-3.
- c. Failing to forward to the office of the District Attorney of New York County evidence of criminal acts committed by police personnel;
- d. Failing to establish or assure the functioning of a bona fide and meaningful departmental system for dealing with complaints of police misconduct, but instead responding to these types of complaints with bureaucratic power and official denials calculated to mislead the public.

90. That the failure to supervise and/or train by the defendant CITY of defendants DOES 1-3 rose to the level of deliberate indifference to the consequences of its actions, and indifference to plaintiff's rights, privileges and immunities secured by the Constitution of the United States of America inter alia, plaintiff's Fourth and Fourteenth Amendment rights.

91. That as a result of the foregoing, plaintiff was severely and seriously mentally injured, suffered a loss of enjoyment of life and loss of liberty, suffered great indignity and humiliation, was

held up to scorn and ridicule, was injured in her character and reputation, and suffered economic loss and other damages.

92. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

THIRTEENTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Negligence/ Gross Negligence)

93. Plaintiff CATHERINE WARREN repeats and re-alleges each and every allegation set forth above as though fully set forth at length herein.

94. That on or about November 27, 2013, in the County of Kings, City and State of New York, defendant CITY, its agents, servants and/or employees, including defendants DOES 1-3, caused plaintiff to be sustain personal injuries.

95. That the aforesaid incident and resulting injuries were due to the negligence/gross negligence of the defendants, and each of them, in the manner in which they performed their duties as officers of the NYPD; in failing to exercise reasonable case in connection with the performance of their duties; in failing adequately to evaluate the situation confronting them; and in otherwise being negligent/grossly negligent.

96. That the aforementioned incident and injuries were caused solely and wholly by reason of the recklessness, carelessness, and negligence/gross negligence of the defendants herein and without any negligence on the part of the plaintiff contributing thereto.

97. That defendant CITY is liable for the damages suffered by the plaintiff as a result of the conduct of its agents, servants and/or employees, under the doctrine of respondeat superior.

98. That the defendants, DOES 1-3 herein are derivatively, jointly and severally liable for the acts of each other.

99. That as a result of the foregoing, plaintiff was severely and seriously mentally injured, suffered a loss of enjoyment of life and loss of liberty, suffered great indignity and humiliation, was held up to scorn and ridicule, was injured in her character and reputation, and suffered economic loss and other damages.

100. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

FOURTEENTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Violation of Article I, § 12 of the New York State Constitution)

101. Plaintiff CATHERINE WARREN repeats and re-alleges each and every allegation set forth above as though fully set forth at length herein.

102. That by virtue of the aforementioned acts, defendants are liable to plaintiff for violating her right to be free of unreasonable and unlawful searches and seizures under Article I, § 12 of the New York State Constitution.

103. The acts and conduct of the agents and employees of defendant CITY, including defendants DOES 1-3, were the direct and proximate cause of injury and damage to plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

104. That defendant CITY is liable for the damages suffered by plaintiff as a result of the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

105. That as a result of the foregoing, plaintiff was severely and seriously mentally injured, suffered a loss of enjoyment of life, loss of liberty, suffered great indignity and humiliation, was held up to scorn and ridicule, was injured in her character and reputation, and suffered economic loss and other damages.

106. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

FIFTEENTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Abuse of Process under New York State Law)

107. Plaintiff CATHERINE WARREN repeats and re-alleges each and every allegation set forth above as though fully set forth at length herein.

108. By the conduct and actions described above, defendants employed regularly issued process against plaintiff compelling the performance or forbearance of prescribed acts. The purpose of activating the process was intent to harm plaintiff without economic or social excuse or justification, and the defendants were seeking a collateral advantage or corresponding detriment to plaintiff which was outside the legitimate ends of the process. This included, but was not limited to, covering up defendants' illegal actions in knowingly arresting plaintiff without any legal basis, justification, or probable cause.

109. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York, and as a result of the foregoing, plaintiff was severely and seriously mentally injured, suffered a loss of liberty and a loss of enjoyment of life, suffered great indignity and humiliation, was held up to scorn and ridicule, was injured in her character and reputation, and suffered economic loss and other damages.

110. That defendant CITY is liable for the damages suffered by plaintiff as a result of the conduct of its agents, servants, and/or employees, including defendants and DOES 1-3, under the doctrine of respondeat superior.

111. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

SIXTEENTH CAUSE OF ACTION AGAINST DEFENDANTS DOES 1-3
(42 U.S.C. § 1983 arising out of Malicious Abuse of Process)

112. Plaintiff CATHERINE WARREN repeats and re-alleges each and every allegation set forth above as though fully set forth at length herein.

113. By the conduct and actions described above, defendants employed regularly issued process against plaintiff compelling the performance or forbearance of prescribed acts. The purpose of activating the process was intent to harm plaintiff without economic or social excuse or justification, and the defendants were seeking a collateral advantage or corresponding detriment to plaintiff which was outside the legitimate ends of the process. Such collateral objective included, but was not limited to, covering up defendants' illegal actions in knowingly arresting plaintiff without any legal basis, justification, or probable cause.

114. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and that by virtue of the aforementioned acts, plaintiff was deprived of her rights, privileges and immunities secured by the Constitution of the United States, including her rights under the Fourth and Fourteenth Amendments to the U.S. Constitution to be free from unreasonable or unlawful searches and seizures and to due process of law, and as a result of the foregoing, plaintiff was severely and seriously mentally injured, suffered a loss of liberty and a loss of enjoyment of life, suffered great indignity and humiliation, was held up to scorn and ridicule, was injured in her character and reputation, and suffered economic loss and other damages.

115. That defendants DOES 1-3 are sued in their individual and official capacities.

116. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

SEVENTEENTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Prima Facie Tort under New York State Law)

117. Plaintiff CATHERINE WARREN repeats and re-alleges each and every allegation set forth above as though fully set forth at length herein.

118. By the conduct and actions described above, defendants maliciously and intentionally inflicted harm on plaintiff without lawful excuse or justification.

119. Said acts and conduct of defendants were the direct and proximate cause of injury and damage to plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

120. As a result of the foregoing, plaintiff was deprived of her liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, great humiliation, economic damages, costs and expenses, loss of enjoyment of life and loss of liberty, suffered great indignity and humiliation, was held up to scorn and ridicule, was injured in her character and reputation, and was otherwise damaged and injured.

121. That defendant CITY is liable for the damages suffered by plaintiff as a result of the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

122. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

EIGHTEENTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Failure to Intervene under New York State Law)

123. Plaintiff CATHERINE WARREN repeats and re-alleges each and every allegation set forth above as though fully set forth at length herein.

124. Defendants DOES 1-3 failed to intervene to prevent, end or report the unlawful and unconstitutional conduct to which plaintiff was subjected despite the fact that they had opportunities to do so.

125. The individual defendants, and each of them, thereby displayed deliberate indifference to plaintiff's rights to be free from unreasonable and unlawful search and seizure and to procedural and substantive due process.

126. That by virtue of the aforementioned acts by defendants, plaintiff was deprived of her civil rights guaranteed by the statutes, common law, and laws and Constitution of the State of New York.

127. As a result of the foregoing, plaintiff was deprived of her liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, suffered great indignity, was held up to scorn and ridicule, was injured in her character and reputation, and was otherwise damaged and injured.

128. That defendant CITY is liable for the damages suffered by plaintiff as a result of the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

129. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

NINETEENTH CAUSE OF ACTION AGAINST DEFENDANTS DOES 1-3
(42 U.S.C. § 1983 based on Failure to Intervene)

130. Plaintiff CATHERINE WARREN repeats and re-alleges each and every allegation set forth above as though fully set forth at length herein.

131. Defendants DOES 1-3 failed to intervene to prevent, end or report the unlawful and unconstitutional conduct to which plaintiff was subjected despite the fact that they had opportunities to do so.

132. The individual defendants, and each of them, thereby displayed deliberate indifference to plaintiff's rights, including but not limited to plaintiff's right to be free from unreasonable and unlawful searches and seizures and to procedural and substantive due process.

133. That by virtue of the aforementioned acts by defendants, plaintiff was deprived of her civil rights guaranteed under the Constitution of the United States, including her rights under the Fourth and Fourteenth Amendments to the United States Constitution, and as a result of the foregoing, plaintiff was severely and seriously mentally injured, suffered a loss of liberty and a loss of enjoyment of life, suffered great indignity and humiliation, was held up to scorn and ridicule, was injured in her character and reputation, and suffered economic loss and other damages, and defendants DOES 1-3 therefore are liable to plaintiff for damages under 42 USC § 1983.

134. That defendants DOES 1-3 are sued in their individual and official capacities.

135. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

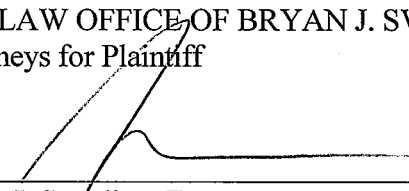
WHEREFORE, plaintiff demands the following relief jointly and severally against each defendant:

- a. Compensatory damages in an amount against defendants herein which exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction herein.
- b. Punitive damages in an amount to be determined by a jury;
- c. The convening of a jury to consider the merits of the claims herein;
- d. Attorney's fees pursuant to 42 U.S.C. § 1988;
- e. An award of plaintiff's costs of suit;
- f. Pre-judgment and post-judgment interest;
- g. Such other further relief as this Court may deem appropriate and equitable, including injunctive and declaratory relief as may be required in the interest of justice.

Dated: New York, New York
April 22, 2014

Yours, etc.,

THE LAW OFFICE OF BRYAN J. SWERLING, P.C.
Attorneys for Plaintiff

By: 

Bryan J. Swerling, Esq.
150 Broadway, Suite 1600
New York, NY 10038
Tel.: (212) 571-5757

ATTORNEY'S VERIFICATION

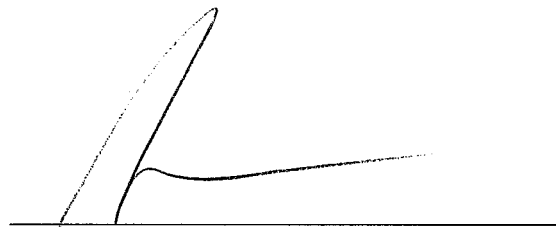
The undersigned, an attorney admitted to practice in the State of New York, hereby affirms, that the undersigned has read the foregoing Complaint, knows the contents thereof; that the same is true to affirmant's own knowledge, except as to the matters therein stated to be alleged on information and belief and as to those matters affirmant believes them to be true.

The undersigned further states that the reason this affirmation is made by the undersigned and not the plaintiff is that plaintiff resides in a county other than that in which affirmant maintains his offices.

The grounds of affirmant's belief as to all matters not stated to be upon affirmant's knowledge are as follows: Criminal Court records, Investigations, File.

The undersigned affirms that the foregoing statements are true, under penalty of perjury.

Dated: New York, New York
April 22, 2014


A handwritten signature in black ink, appearing to read 'Bryan J. Swerling', is written over a horizontal line. The signature is stylized with a large, sweeping initial 'B'.

BRYAN J. SWERLING

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

CATHERINE WARREN,

Plaintiff,

-against-

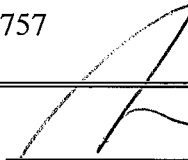
THE CITY OF NEW YORK and "JOHN DOES 1-3," names being fictitious and presently unknown, intended to be the police officers involved in plaintiff's arrest, detention and imprisonment on November 27, 2013,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

Law Office of Bryan J. Swerling, P.C.
Attorney for Plaintiff
Office and Post Office Address, Telephone
150 Broadway, Suite 1600
New York, New York 10038
Tel.: (212) 571-5757

Signature Pursuant to Rule 130-1.1-a


Bryan J. Swerling

To:
